IN THE SUPREME COURT OF INDIA

CIVIL APPELLATE JURISDICTION

SPECIAL LEAVE PETITION (CIVIL) No. /2011

IN THE MATTER OF:

Girishgouda Petitioner

Versus

Kumar Bhuvan and others Respondents

AFFIDAVIT

I, Girish Gouda, s/o. Ayyappagouda Patil, aged 42 years, Occ: Agriculture and Business, R/o. House No.24, Mrudani, 3rd Cross, A-Sector, Ganesha Temple Block, Amrutnagar, Sahakarnagar Post, Bangalore – 560 022, do hereby solemnly affirm and state on oath as follows:-

1. I am the petitioner in the present Special Leave Petition and as such I am fully conversant to the facts of the case.

2. The contents of the Synopsis and List of dates (B to…….), the Special Leave Petition paras 1 to 8 and IAs respectively have been read by me carefully and I have understood the same, and I state that the facts stated herein are true to the best of knowledge and belief.

3. The Annexures annexed with the SLP are true copies of their respective originals.

4. That the Special Leave Petition may kindly be taken on board for hearing as the urgent reliefs have sought in the present Special Leave Petition.

VERIFICATION

Solemnly affirmed and signed before me on this 2nd day of 2012, that the contents of this affidavit having been read over and interpreted to me in Kannada Language known and admitted to be true and correct to the best of my knowledge and beliefs.

DEPONENT

Verified at Bangalore on 2nd day of January 2012.

SYNOPSIS AND LIST OF DATES

1. The 1st respondent is a child presently aged about 2 ½ years. The 2nd respondent herein is the mother of the 1st respondent. The other respondents in this Special Leave Petition are the younger brothers of the petitioners. The respondents 1 and 2 respectively are the male child and wife respectively, of the petitioner

2. The petitioner married the 2nd respondent on 31.5.2002 in the wedlock has been born the 1st respondent who, as already stated is the male child of the petitioner and the 2nd respondent. The said child is presently aged about 2 ½ years.

3. In the Original Suit that the respondents 1 and 2 have filed in the court of the Senior Civil Judge at Mudhol of Bijapur District, they have made the following prayers, for a judgment and decree as under:

i) The Hon'ble Court be pleased to award 2/9th joint share to the plaintiff in the suit property, effecting partition between meets and bounds;

ii) The Hon'ble Court be pleased to award 2/9th joint share possession of the plaintiffs separately. Cost of the suit be awarded to the plaintiff all just and equitable reliefs be granted to the plaintiff which even deem fit under the circumstances of the case

in the suit an interim order of injustice against alienation of the suit schedule property has been ordered.

4. The father of the petitioner herein who is also the father of respondents 3 and 4 is alive. He acquired the suit schedule properties by virtue of a decree for partition passed by the learned Civil Judge, Bagalkot of the former Bijapur District in Karnataka State in O.S. No.70/1974 on its file. Having regard to Section 8 of the Hindu Succession Act, 1956 the said properties are his individual properties. There is no coparcenery as such in respect of the said properties nor can the parties hereto be construed as coparceners.

5. Seeking 2/9th share jointly in their favour from out of the said lands which are not coparcener properties of the petitioner's father Sri. Iyappagouda Patil who acquired right and title to the said properties in the manner mentioned above, the vexatious suit from which this Special Leave Petition has arisen has been ill-advisedly filed by the 2nd respondent, making the 1st respondent herein also, as a plaintiff in the said suit.

6. Since the plaint does not disclose any cause of action at all and would therefore richly commend being rejected summarily the petitioner filed an application under Order 7 Rule 11 (d) of the Code of Civil Procedure, 1908, prays for rejecting the plaint. **Annexure-P1** is a copy of the plaint.

Annexure-P2 being a copy of the said application which was opposed by the respondents No.1 and 2, through their Statement of Objections a copy whereof is filed herewith as **Annexure-P3**. From the very objections so filed it is quite clear that the respondents 1 and 2 have admitted the nature of the properties in question and the manner in which Iyappagouda Patil the father of the petitioner herein has acquired the same.

7. In support of his contention that the properties in question are not susceptible to be partitioned, and that the said properties being the individual properties of the petitioner's father, the petitioner pressed into service Section 8 of the Act and heavily relied upon the ruling of this Hon'ble Court in the case of Commissioner of Wealth Tax, Khanapur etc., Vs. Chandersen etc., reported in 1986 (3) SCC page 567 = (AIR 1986 S.C. 1753) and also upon a ruling of the Hon'ble High Court of Karnataka.

8. Whereas the Trial Court merely glossed over the said rulings, without even attempting at grappling with the ratio *dicindendi* thereof, and rejected the application observing that evidence has to be recorded on the contentions of the properties, but so holding without a proper consideration of the contentions of the petitioner, the Hon'ble High Court did not even discuss or rely upon the rulings cited above. As can be seen from the order appealed from herein the Hon'ble High Court has not even discussed about the ratio of the ruling of

this Hon'ble Court in Chandrasen's case supra. Various contentions that the petitioner had raised in his writ petition have also not been dealt with. A copy of the writ petition is filed herewith as **Annexure-P4**. Aggrieved by the summary rejection of the said writ petition, this Special Leave Petition is presented.

LIST OF DATES:

22.5.1994	Original Suit No. 70/1974 on the file of the learned civil judge, Bhagalkot, former Bijapur District was decreed amongst the father of the petitioner and the members of his family. It was compromise decree.
31.5.2002	The 2nd respondent herein got married to the petitioner herein.
8.11.2010	Original Suit No. 59/2010 has been filed by the respondents 1 and 2 seeking 2/9th share jointly from out of the suit schedule properties.
10.12.2010	Upon service of summons in the suit the petitioner filed an application for rejection of the plaint under Order 7 Rule 11 (d) of the Code of Civil Procedure, 1908.

4.1.2011	The respondents 1 and 2 filed their objections thereto.
14.6.2011	The trial court rejected the application (I.A. No.2) and declined to reject the suit.
17.8.2011	The petitioner assailed the aforementioned order of the trial court through a writ petition in W.P. No. 65491/2011 (GM-CPC) before the Circuit Bench of the Hon'ble High Court of Karnataka, at Dharwad.
8.9.2011	The said writ petition has been summarily rejected by the impugned order of the Hon'ble High Court.
2.1.2012	Aggrieved thereby, this Special Leave Petition filed.

IN THE SUPREME COURT OF INDIA AT NEW DELHI

(Order XVI Rule 4(1)(a)
Civil Appeal Jurisdiction)

Special Leave Petition

(Under Article 136 of the Constitution of India)

With prayer for interim relief

Special Leave Petition (Civil) No. /2011

In the matter of :-

1. Sri. Girishgouda,
aged 42 years,
s/o. Ayyappagouda Patil,
Occ: Agriculture and Business,
R/o. House No.24,
Mrudani, 3rd Cross, A-Sector,
Ganesha Temple Block,
Amruthnagar,
Sahakarnagar Post,
Bangalore- 560 022 Petitioner

And:-

1. Kumar Bhuvan,
aged 1½ years,
represented by his mother
Smt. Savita as next friend

2. Savita, w/o. Gireesh Patil,
aged 30 years,
Occ: Housewife,
R/o. Alagundi BK, Taluk, Mudhol,
Now residing at KHB Colony,
Mudhol, Taluk Mudhol,
District Bagalkot.

3. Jagadeesh,
aged 35 years,
s/o. Ayyappagouda Patil,
Occ: Agriculture and Business,
R/o. House No.24,
Mrudani, III Cross, A Sector,
Ganesha Temple Block,
Amruthnagar,
Sahakarnagar Post,
Bangalore – 560 022

4. Sateesh,
Aged 32 years,
s/o. Ayyappagouda Patil,
Occ: Agriculture and Business,
R/o. House No.24,
Mrudani, III Cross, A Sector,
Ganesha Temple Block,
Amrutnagar,
Sahakarnagar Post,
Bangalore – 560 022 Respondents

MEMORANDUM OF PETITION FOR SPECIAL LEAVE UNDER ARTICLE 136 OF THE CONSTITUTION OF INDIA FROM THE FINAL ORDER DATED 8.9.2011 PASSED BY THE HON'BLE HIGH COURT OF KARNATAKA, CIRCUIT BENCH, DHARWAR IN W.P. No. 65491/2011 (GM-CPC)

To,

The Hon'ble Chief Justice of India,
and his Companion Justices of the
Hon'ble Supreme Court of India,
New Delhi.

The humble petition of the petitioner above named

1. MOST RESPECTFULLY SHOWETH AS FOLLOWS:-

That this Special leave Petition is directed against the judgment dated the 8th September 2011, passed by the Hon'ble High Court of Karnataka Circuit Bench at Dharwad in W.P. No. 65491/2011 (GM-CPC) on its file, whereby the said petition filed by the petitioner herein has been dismissed. Under the Karnataka High Court Act, 1961, and in view of a Full Bench ruling of the said court no intra-court appeal therefrom is available to the petitioner, from the said order; and hence, this Special Leave Petition has become imperative and necessary for the redressal of the injury and injustice that has befallen the petitioner.

2. QUESTIONS OF LAW :-

(i) Having regard to the provisions of Section 8 of the Hindu Succession Act, 1956, and the nature of the properties involved in the present petition are the courts below right in holding that the said properties cannot be construed as the individual properties of the petitioner and respondents 3 and 4 herein?

(ii) Is the Hon'ble High Court justified in not even dealing with and following the ratio of the ruling of this Hon'ble Court reported as the Commissioner of Wealth Tax, Khanapur etc., Vs. Chandersen etc., reported in AIR 1986 S.C. 1753 = 1986 (3) SCC 567, which ruling was seriously pressed into service in support of the contention of the petitioner, as fully covering his case in his favour would it not be necessary, in judicial discipline and in view of Article 141 of the Constitution of

India, that the rulings of this Hon'ble Court are followed and applied by them as binding precedents under the doctrine of ***stare decisis*** ?

(iii) Are the courts below justified in not following the ratio of the Hon'ble High Court of Karnataka in the case of Mrs. Malika and others Vs. Chandrappa and others reported in ILR 2007 Karnataka at 3216 which ruling was also pressed into service in support of the propositions urged by the petitioner.

(iv) In the wake of the specific statement contained in the plaint as to the manner in which right and title to the properties in question have been acquired by the petitioner's father was it not necessary to hold that the same are his individual properties – loosely styled as "self-acquired properties".

(v) In the wake of the specific statement contained in paragraph 3 to 7 of the Statement of Objections dated 7.1.2011 filed by respondents 1 and 2 herein, opposing the application under Order 7 Rule 11 (d) of the Code of Civil Procedure, 1973, are the courts below justified in holding that the suit has to be tried on its merits and that the plaint would not be liable for rejection.

3. DECLARATION IN TERMS OF RULE 4(2) :-

The petitioner states that no other petition seeking leave to appeal has been filed by him previously, against the judgment questioned in this Special Leave Petition.

4. DECLARATION IN TERMS OF RULE 6 :-

The Annexures P1 to_____ produced with the Special Leave Petition are all true copies of the documents which formed part of the records of the case in the High Court from the judgment of which court the present Special Leave Petition has arisen.

5. GROUNDS :-

Leave to appeal is sought by the petitioners, on the following grounds.

I. The impugned orders are plainly opposed to Section 8 of the Hindu Succession Act, 1956.

II. The courts below ought to have appreciated that the plaintiffs (respondent No.1 and 2) have no manner of right or title to, interest in or possession of any of the suit schedule properties, and that the statement contained in paragraph 6 of the plaint that, since 22.5.1994 they and the defendants in the suit are in joint possession and enjoyment of the suit schedule

properties when, it is evident from paragraph 4 of the plaint that the 2nd respondent herein was married to the petitioner on 31.5.2002 and the 1st respondent herein is a child presently aged about 2 ½ years and was aged 1 ½ years as on 8.11.2010 when the suit was instituted. This salient aspect of the matter has escaped the attention of both the courts below which have failed to appreciate that the plaint does not disclose any cause of action and that Order 7 Rule 11 of the Code of Civil Procedure, 1908 is designed to nip such suits in the bud itself.

III. The orders of the court below are plainly opposed to the ratio of the rulings of this Hon'ble Court in the case of Commissioner of Wealth Tax, Khanapur etc., Vs. Chandersen etc., reported in AIR 1986 S.C. 1753 = 1980 (and the Hon'ble High Court has gravely erred in not even dealing with or following the ruling of this Hon'ble Court in the case of Commissioner of Wealth Tax, Khanapur Vs. Chandersen etc., reported in AIR 1986 S.C. 1753 = 1986 (3) SCC 567.

Repeat……the facts as grounds.

6. <u>GROUNDS FOR INTERIM RELIEF</u> :-

The trial court having rejected the application for rejecting the plaint has been proceeding with the matter and has even passed an interim order restraining the petitioner and the respondents No.3 and 4 from alienating any of the

suit schedule properties, pending disposal of the suit. Further the suit had been posted to 4.1.2012 for the petitioner, filing his written Statement which he has not so far filed in view of the application for rejection of the plaint filed by the petitioner herein. The suit is now stand **posted to.....**If, during the pendency of the Special Leave Petition the suit is proceeded with, the very Special Leave Petition would, in such an event, become academic and nugatory, besides the same causing a severe injury and hardship to the petitioner.

7. MAIN PRAYER :-

It is, therefore, most respectfully prayed that this Hon'ble Court graciously be pleased to :-

a) GRANT Special Leave to appeal from the final judgment/ORDER dated 8.9.2011 passed by the Hon'ble High Court of Karnataka, Circuit Bench at Dharwad, in W.P. No. 65491/2011 (GM-CPC) on its file;

and

b) PASS such other or further orders as this Hon'ble Court may deem just and proper in the facts and circumstances of the case, including the award of the costs of the proceedings althrough, and in the interest of justice and equity.

8. PRAYER FOR INTERIM RELIEF :-

It is, therefore, most respectfully prayed that this Hon'ble Court, be graciously pleased to:

(a) ***grant*** an interim order of stay of all further proceedings in O.S. No. 59/2010 on the file of the learned Senior Civil Judge (Mudhol), Bijapur District, Karnataka State, pending disposal of the aforementioned Special Leave Petition and to grant an ad-interim order in like terms, pending issuance and service of notice of this petition on the respondents;

and

(b) ***pass*** such other order or orders which this Hon'ble Court may deem fit and proper in the interest of justice.

New Delhi
Date:

Advocate for the Petitioner

IN THE SUPREME COURT OF INDIA AT NEW DELHI

S.L.P. NO._____/2011 (Civil)

IN THE MATTER OF:

Girishgouda Petitioner

Versus

Kumar Bhuvan and others Respondents

TO,

THE HON'BLE CHIEF JUSTICE OF INDIA AND HIS COMPANION JUDGES OF THE HON'BLE SUPREME COURT OF INDIA.

The humble petition of the petitioner above-named respectfully showeth :-

I.A. NO._____/ UNDER ORDER RULE OF THE COCE OF CIVIL PROCEDURE, 1908.

The petitioner above-named respectfully submits as follows:-

1. The Special Leave Petition is directed against the final order dated 8.9.2011 passed by the Hon'ble High Court of Karnataka, Circuit Bench, Dharwad, whereby the writ petition filed by him has been rejected. A certified copy of the said order of rejection was applied for by the petitioner on 3.10.2011 and has been delivered to him on 17.10.2011.

2. The petitioner has been under medical treatment as is evident from the certificate is filed herewith. As such he could not file this intended Special Leave Petition within the period of limitation prescribed therefor. There is no remissness or want of diligence on his part in this regard. He has although been been serious in pursuing his legal proceedings. But for his being ill, the Special Leave Petition would have been filed well within the period of limitation. He has a good case on merits, and the cause of justice would require the inadvertent and unavoidable delay in filing the Special Leave Petition being graciously condoned; and the Special Leave Petition being considered on its merits.

3. Wherefore, it is respectfully prayed that this Hon'ble Court be pleased to :-

condone the delay of 22 days in filing the above mentioned Special Leave Petition, in the interest of justice and equity.

New Delhi ADVOCATE FOR THE PETITIONER
Date: